



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 11, 2025

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202309123 (Incident Date: September 15, 2023) regarding Police Officer Aleksey Berezovskiy, Tax No. 956433 (PODS Case No. C-033123)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Aleksey Berezovskiy and has determined that his actions do not warrant disciplinary action.

In this matter, Police Officer Berezovskiy is alleged to have used excessive force when he attempted to assist in gaining control over an individual who was resisting removal to the hospital for evaluation. The radio run came over as a violent male, with mental health issues, that was hitting himself. The radio run information further stated that the male was under the influence of marijuana, was punching walls and that the individual's mother was the caller. After speaking to the mother, the officers attempted to lead the individual out of the front door of the building for the purpose of being transported by Emergency Medical Services to the hospital. As they neared the front door of the lobby, the individual tensed up and stopped walking. In response, the officers told him he was going to be placed into handcuffs. Almost immediately, the individual began struggling with the officers until he was eventually taken to the ground.

To take the individual into custody and prevent escape, Police Officer Berezovskiy admitted that he pressed his leg against the side of the individual's head while he was on the ground. The body worn camera footage corroborates the statement as the other officers attempted to handcuff the individual and control the situation. Despite there being four (4) officers present, the lobby within which they attempted to control the resisting individual was a confined space with little room to operate. In fact, once the individual was told he was going to be placed into handcuffs, he elevated

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his physical resistance from tensing his body, to pushing off one officer, turning his body towards the wall, and refusing to give his hands. This continued until he was taken to the ground. There was no evidence that Police Officer Berezovskiy used force to strike the individual with his knee. Instead, coupled with the knee placement, Police Officer Berezovskiy admitted that he placed his hands on the individual's back which further demonstrated that his attempts were to prevent the individual from moving. Once that was established, they were able to control the situation, handcuff the individual, and have him stand and walk out of the building to be transported to the hospital. Police Officer Berezovskiy's use of force was not only reasonable, but his tactics were also effectively utilized.

Therefore, based on the foregoing, Police Officer Berezovskiy will not receive any disciplinary action for the alleged misconduct.

Sincerely,



Michael P. Baker

Deputy Chief
Commanding Officer
Police Commissioner's Office